

**ALL INDIA INDIAN BANK SC/ST
EMPLOYEES WELFARE COUNCIL**
(Regd No. S/83843)



**‘Educate, Agitate, Organise’
- Dr. B.R. Ambedkar**

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Kolkata – 70001.**

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**RULES & REGULATIONS FOR THE 17TH
NATIONAL CONFERENCE / GENERAL
BODY MEETING**

**RULES AND REGULATIONS FOR THE 17TH NATIONAL CONFERENCE /
GENERAL BODY MEETING & ELECTION OF NEW CENTRAL EXECUTIVE
COMMITTEE MEMBERS OF ALL INDIA INDIAN BANK SC ST
EMPLOYEES WELFARE COUNCIL (AIIBSCSTEWEC)**

1) Short Title: These regulations shall be called " RULES AND REGULATIONS FOR THE ELECTION OF NEW CENTRAL EXECUTIVE COMMITTEE MEMBERS"

2) Definition: In this regulation,

- a) **"The Act"** means the West Bengal Societies Registration Act, 1961 (West Bengal Act xxvi of 1961).
- b) **"Rules"** means West Bengal Societies Registration, 1963.
- c) **"By-laws"** means the Bye-laws of "All India Indian Bank SC/ST Employees Welfare Council (AIIBSCSTEWEC)" (Regd No. S/83843) functioning at its Central Office: 14, India Exchange Place, (1st Floor), Kolkata – 70001.
- d) **"The Bank"** means "Indian Bank" a body corporate constituted under the banking Companies (Acquisition and Transfer of Undertaking) Act, 1970 with its Corporate Office at 254-260, Avvai Shanmugam Salai, Royapettah, Chennai – 600 014.
- e) **"The Election Commissioner"** means the officer appointed to conduct the Election of new Central Executive Committee
- f) **"Joint Administrators"** means the two Special Officers appointed by the Hon'ble Division Bench of High Court of Calcutta in FMAT 261 of 2025 read with FMA 857 of 2025 vide its Order dated 10.07.2025 under the aegis of whom the election shall be held, to select the venue as well as the other important modalities of the election, in consultation with the President of the erstwhile Executive Committee and in consonance with the Rules and Regulations of the Council. The decision of the joint Administrators shall be final in that regard.

As per Rule 11 of our By-law:

3. Election of new Central Executive Committee/ General Body Meeting:

The Election of the CEC of the council shall be held as per Rule 4 and 11 of the byelaws of the council. The said rules are appended.

The general body shall be consisting of the delegates elected by the general members of the council as per ratio fixed by the CEC from time to time.

- a) The general body meeting shall be held within two months after the end of the year i.e. within the month of May except in unavoidable circumstances.

- b) The business of a general body meeting shall be for the purpose of considering and accepting the balance sheet, Income and Expenditure account of the council and the report of the General Secretary as well as of the Auditor's report. The new executive committee shall have to be installed and the auditors for the next year shall have to be appointed.
- c) "Generally, three months' notice shall be given except in urgent case before the date of general body meeting signifying the place, date, hour of the meeting and indicating clearly the agenda of the general body meeting.

Besides the above, and as per prevailing practice

- a) The delegates elected by the Zonal Committees of the Council are permitted to attend and participate in the proceedings of the General Body Meeting to elect the new Central Executive Committee of the Council as per the aforesaid rules of the byelaws of the Council.
- b) The delegates have to be selected / elected in the general meeting of the units @30:1 ie. for 30 (thirty) members and major fraction thereof 1 (one) delegate. The President, General Secretary of the units and CEC Members will be ex-officio delegates in addition to that. Minimum delegate will be 5 and Maximum 10 per Unit.
- c) The number of posts of the CEC shall be as per following Rule 4 of the bye laws of the Council.

As per Rule 4 of our By-law:

4. Central Executive Committee:

- a) The day to day business of the Council shall be carried on and managed by the Central Executive Committee consisting of the following executives who shall be elected from amongst the general members of the Council. At least one member will be elected from each zonal committee.

S.No	Designation / Post	Numbers
1.	President	1
2.	Vice-President	10
3.	General Secretary	1
4.	Assistant General Secretary	10
5.	Organizing Secretary	1
6.	Treasurer	1
7.	Assistant Treasurer	1
8.	Executive Members	40
9.	Permanent Invitee	10
	Total	75

- b) The life time of the executive committee shall ordinarily be two years from the date of its installation, but shall not exceed three years by any means.
- c) Meeting of the executive committee shall be held at least once in every three months. There may be special meeting, if necessary, of the committee.
- d) One third members of the committee will form quorum of the meeting. In absence of quorum the meeting will be adjourned sine die and fresh notice shall be served for further meeting.
- e) The meeting of the executive committee generally shall be convened by the General Secretary in consultation with the President. If 1/3rd members of the executive committee request the General Secretary to convene a meeting, the general secretary shall be obliged to do so. If he fails to do so, the President in such case, may call a meeting.
- f) At least seven days' notice shall be given for any Executive Committee meeting except in urgent case.
- g) If any member of the executive committee remains absent from three consecutive meeting without assigning any reasonable ground his membership shall be automatically lapsed.
- h) The members of the Central Executive Committee shall be ex-officio members of all the committees from which they hail if not elected otherwise in such committees.
- i) If any member of the executive committee resigns or is removed during the tenure of his office the vacancy shall be co-opted by the executive committee.
- j) The executive committee shall have the right to constitute any sub-committee, make laws / bylaws of any specific purpose.
- k) The subject matter of discussion with the management shall have to be discussed amongst the executive committee members and on the basis of this discussion the negotiation team shall have to take the points for discussion, outside of which they shall not discuss anything as far as practicable with the management.

As per Rule 5 of our By-law:

5. Method of Elections:

- a) Delegates fixed by the CEC for the unit as per membership strength will be elected by the general members of respective units.
- b) The executive committee will be elected by the delegates in the general body meeting.

- c) All election shall be held either by voice vote or by ballot.
- d) The Central Executive Committee will appoint an Election Commissioner for conducting Election of Executives.

6. Appointment of Election Commissioner :

- a) The Election Commissioner, an Employee of the Bank, generally belonging to Scheduled Caste / Schedule Tribe Committee appointed by the Central Office Bearers (the President or/and the General Secretary in consultation with the majority existing Central Executive Members) to conduct the Election of new Central Executive Committee as per the rules and regulations laid down in the bylaws of the Council and under the West Bengal Societies registration Act, 1961 and West Bengal Societies registration Rules, 1963.
- b) Functions of the Election Commissioner:
 - i. *To collect the nomination form and/or panel for the CEC posts on the date and hour as decided by him.*
 - ii. *To confirm whether the nomination form and/or panel for the CEC posts is proposed and seconded by the delegates present in the GBM, as per practice prevailing in Council.*
 - iii. *As per aforesaid byelaws of the Council, to conduct the voting either by voice vote or by secret ballot.*
 - iv. *The Election Commissioner shall identify the delegate through the Identity card issued by the Bank with the delegate list provided to him by the Council.*
 - v. *To ensure that canvassing in any form for election is not being done by any delegate present in the GBM.*
 - vi. *To ensure that each ballot paper is properly validly voted against the panel number as per the choice of the voters.*
 - vii. *If at any stage of the polling, the proceedings are interrupted or obstructed by any one, the Election Commissioner shall have the power to take decision as deem fit by him in the circumstances prevailing.*
 - viii. *After the polling is over, the Election Commissioner shall announce the result of the polling in the GBM and sign the result.*

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